special words I have above cited, from the judicial act, I apprehend, can be, either, 1st. Those of the particular laws of the state, against which the suit is brought. Or 2d. Principles of law, common to all the states. I omit any consideration arising from the word "usages," though a still stronger expression. In regard to the principles of the particular laws of the state of Georgia, if they in any manner differed, so as to affect this question, from the principles of law, common to all the states, it might be material to inquire, whether, there would be any propriety or congruity in laying down a rule of decision which would induce this consequence, that an action would lie in the supreme court against some states, whose laws admitted of a compulsory remedy against their own governments, but not against others, wherein no such remedy was admitted, or which would require, perhaps, if the principle was received, fifteen different methods of proceeding against states, all standing in the same political relation to the general government, and none having any pretence to a distinction in its favor, or justly liable to any distinction to its prejudice. If any such difference existed in the laws of the different states, there would seem to be a propriety, in order to induce uniformity (if a constitutional power for that purpose exists), that congress should prescribe a rule, fitted to this new case, to which no equal, uniform and impartial mode of proceeding could otherwise be applied.

But this point, I conceive, it is unnecessary to determine, because I believe there is no doubt, that neither in the state now in question, nor in any other in the Union, any particular legislative mode, authorizing a compulsory suit for the recovery of money against a state, was in being, either when the constitution *was adopted, or at the time the judicial act was passed. Since that time, an act of assembly for such a purpose has been passed [*435 in Georgia. But that surely could have no influence in the construction of an act of the legislature of the United States, passed before.

The only principles of law, then, that can be regarded, are those common to all the states. I know of none such, which can affect this case, but those that are derived from what is properly termed "the common law," a law which I presume is the ground-work of the laws in every state in the Union, and which I consider, so far as it is applicable to the peculiar circumstances of the country, and where no special act of legislation controls it, to be in force in each state, as it existed in England (unaltered by any statute), at the time of the first settlement of the country. The statutes of England that are in force in America differ perhaps in all the states; and therefore, it is probable, the common law in each is in some respects different. But it is certain, that in regard to any common-law principle which can influence the question before us, no alteration has been made by any statute, which could occasion the least material difference, or have any partial effect. No other part of the common law of England, it appears to me, can have any reference to this subject, but that part of it which prescribes remedies against the crown. Every state in the Union, in every instance where its sovereignty has not been delegated to the United States, I consider to be as completely sovereign, as the United States are in respect to the powers surrendered. The United States are sovereign as to all the powers of government actually surrendered: each state in the Union is sovereign, as to all the powers reserved. It must necessarily be so, because the United States have no claim to any authority but such as the states have surrendered to